

Court No. - 29

Case :- WRIT - C No. - 13870 of 2019

Petitioner :- Islamudin

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Uttar Kumar Goswami

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Pankaj Mithal, J.

Hon'ble Prakash Padia, J.

Heard Sri Uttar Kumar Goswami, learned counsel for the petitioner, learned Standing counsel and Sri Chandan Agrawal, learned counsel for respondents no. 2,3 and 4.

The petitioner is disputing the electricity bill and in that connection has submitted a representation dated 21.12.2018. He wants that his representation may be decided and the electricity connection be restored.

Since the petitioner is disputing the electricity bill, the proper remedy available to him is under paragraph 6.5 of the U.P. Electricity Supply code, 2005.

At this stage, learned counsel for the petitioner submits that he is ready and willing to deposit the disputed amount of the bill provided his electricity is restored.

In case the petitioner deposits the disputed amount, it goes without saying that the respondents will restore the electricity supply of the petitioner immediately and the dispute regarding the amount, if any, raised under Paragraph 6.5 of the Code may be decided notwithstanding the above payment.

The petition is disposed of with the above observation.

Order Date :- 22.4.2019

SKS